

Court No. - 40

Case :- WRIT - C No. - 20446 of 2021

Petitioner :- M/S Jai Kishan Stone Crusher Karari

Respondent :- U.P. Electricity Ombudsman And 4 Others

Counsel for Petitioner :- Kushmondeya Shahi, Rajendra Prasad

Counsel for Respondent :- Arti Raje

Hon'ble Manoj Misra,J.

Hon'ble Jayant Banerji,J.

1. We have heard Sri K. Shahi for the petitioner; Ms. Arti Raje for the contesting respondents 3 to 5; and have perused the record.

2. The petitioner is a proprietorship firm which has an electricity connection for running stone crushing business. For the period starting from January, 2016 upto March, 2017 the petitioner defaulted in payment of electricity dues, as a consequence whereof, a bill/demand of Rs.6,36,536/- was raised. Complaining that the demand as raised is not payable because the petitioner was not supplied electricity at the requisite voltage, as a result whereof his machines had to be run with power generator support, the petitioner filed Complaint No.154 of 2018 before the Consumer Grievance Redressal Forum, Jhansi (for short the Forum). During the pendency of the proceedings before the Forum, as the electricity supply was temporarily disconnected on non payment of dues, under an interim order of the Forum, subject to deposit of certain amount by the petitioner, the electricity supply was resumed. Thereafter, on non payment of the dues, a fresh demand, by adding the previous unpaid dues, of Rs.25,92,690/- was raised against which the petitioner filed a fresh complaint before the Forum, which was numbered 04 of 2019. Upon finding from the MRI report that the voltage drop in the electrical supply for the disputed period was within the permissible limits and such minor drop in voltage would not entitle the consumer to evade his liability under the bills, the Forum dismissed the Complaint No.154 of 2018 by order dated

16.10.2019. Similarly, upon finding that the petitioner had defaulted in payment of the bill amount in respect of the electricity supply pursuant to the interim order passed by the Forum, the Complaint No.04 of 2019 was also dismissed by another order dated 14.12.2019.

3. Aggrieved with dismissal of both the complaints, the petitioner filed two separate appeals before the U.P. Electricity Ombudsman synonym of U.P. Vidyut Lokpal (for short the Ombudsman or the Vidyut Lokpal). Appeal No.37 of 2020 was against the order of the Forum dated 16.10.2019 in Complaint No.154 of 2018 whereas Appeal No.38 of 2020 was filed against the order dated 14.12.2019 passed by the Forum in Complaint No.4 of 2019. Both the appeals were connected with each other and have been dismissed by the Vidyut Lokpal, vide impugned order dated 15.06.2021, subject to the following directions: (a) that the licensee shall not raise demand of minimum charge for the period starting from June, 2020 upto 22.09.2020, i.e. from the date when interim order was passed for re-connection upto the date when the interim order was complied with; (b) that the licensee shall adjust all the deposits made after the demand was raised and shall issue a fresh revised bill after adjustment of all the deposits for the period concerned; and (c) if the consumer makes a demand for the facility to deposit the revised demand bill in instalments, then that facility shall also be provided as per the Rules.

4. The learned counsel for the petitioner has challenged the order passed by the Forum as well as the Ombudsman on the ground that the MRI report on which reliance was placed was not obtained as per the procedure provided by the U.P. Electricity Supply Code, inasmuch as, it was not conducted in the presence of the petitioner and, therefore, since there was a low voltage supply, the bill raised was not justified and only minimum charges could have been demanded.

5. Ms. Arti Raje, who appeared for the contesting respondents 3 to

5, submitted that the petitioner has not taken any such ground to challenge the veracity/correctness of the MRI report in its appeal before the Ombudsman as would be visible from the grounds of the appeal, which are there on record as Annexure Nos.5 and 6 to the petition. She further submitted that the Forum as well as Ombudsman has recorded a categorical finding that from the MRI report it was clear that the drop in voltage was not beyond the permissible limit. Reports were also there on record to suggest that the voltage supplied was sufficient to run the machines. Thus, no fault could be found in the demand raised. She further submitted that Ombudsman has already directed for waiver of the minimum charges for the period during which the connection was not restored despite the interim order and has also provided for adjustment of all previous deposits and has directed for issuance of revised bill as also the facility of payment of the bill in instalments therefore, it is not a fit case where any indulgence be shown to the petitioner who had been a defaulter.

6. We have given our thoughtful consideration to the rival submissions and have perused the record carefully. The order passed by the Ombudsman is well reasoned and has accorded consideration not only to the reports that are there on record but also to the various provisions of the U.P. Electricity Supply Code, 2005 (for short the Code) in respect of a permissible variation in voltage etc. and after considering the arguments and having provided opportunity of hearing to the petitioner, has come to the conclusion that the claim of the petitioner that there had been low voltage supply was not correct. The Ombudsman has also recorded a categorical finding, after considering all the material on record, that the petitioner was not entitled for any waiver towards bill payment on the ground of low voltage supply. In addition to above, the Ombudsman also recorded a finding that as per the provisions of the Code the consumer was liable to pay minimum charges during the period there was temporary disconnection on

account of non payment of electrical dues. After examining all aspects at length, the Ombudsman affirmed the order of the Forum dismissing the complaints made by the petitioner.

7. The contention of the learned counsel for the petitioner that the MRI report, which formed basis to reject the complaint of the petitioner, was not in accordance with law, is not liable to be entertained at this stage, particularly, when he has failed to demonstrate that any such ground was taken by the petitioner before the Ombudsman in its appeal. Other than that, the learned counsel for the petitioner could not demonstrate as to how the order passed by the Ombudsman suffers from any legal infirmity.

8. At this stage, the Sri Shahi referred to the supplementary affidavit filed today to contend that the Supply Corporation has raised bills without properly revising the same as per direction of the Ombudsman. If that is so, it is a subsequent cause of action for which the petitioner is free to take recourse to the remedies under the Code.

9. In view of the above and by keeping in mind that the Ombudsman has already allowed the benefit of adjustment of deposits made by the petitioner and has, accordingly, directed for issuance of a revised bill and the facility of payment of the bill amount in instalments, as per the rules, we do not find any good reason to interfere with the orders impugned in exercise of our writ jurisdiction, particularly, when the petitioner has failed to demonstrate as to how the orders impugned suffer from any legal infirmity. The petition is therefore **dismissed**.

Order Date :- 23.9.2021
AKShukla/-